Ordinance No. 577

AN ORDINANCE TO AMEND 548 AND ORDINANCE 563 ADJUSTING TO CONSISTENT SEWER SERVICES RENDERED THE CITY OF RECTOR, ARKANSAS; AND PRESCRIBING OTHER MATTERS RELATING THERETO.

WHEREAS, The City of Rector, Arkansas (the "City") owns and operates water and sewer facilities, which water and sewer facilities are operated as one interrelated municipal undertaking (the "System"); and

WHEREAS, it is necessary for the City to increase the rates to be charged for the services of the System in order to finance improvements to the System, which are necessary to make the services thereof adequate for the needs of the city;

WHEREAS, the City has been under a consent decree and in order to assure safe and habitable water for the citizens, the rising costs of infrastructure, and to provide a consistent basis for expenses for the sewer and water billing, the City Council must increase rates to continue to provide such services to its citizens.

NOW, THEREFORE BE IT ORDAINED by the City Council of the City of Rector, Arkansas:

Section 1. That Section 2 of Ordinance 548 and 563 shall be amended as follow:

The following monthly rates and charges which the City Council hereby finds and declares are fair, reasonable and minimum rates to be charged for the sewer services be, and they are hereby, fixed as rates to be rendered by the system.

Monthly Sewer Rates. All sewer charges shall be based on water consumption and the amount to be paid by each customer shall be computed on the basis of the following schedule of rates:

RESIDENTIAL WATER CUSTOMERS

INSIDE CITY

For the first 2,000 gallons of water consumption per month, or portion thereof	$15.37 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	3.92 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	2.32 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	2.12 per 1,000 gallons

OUTSIDE CITY

For the first 2,000 gallons of water consumption per month, or portion thereof	$25.62 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	6.83 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	4.35 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	3.98 per 1,000 gallons

COMMERCIAL WATER CUSTOMERS

For the first 2,000 gallons of water consumption per month, or portion thereof	$20.05 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	4.31 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	2.60 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	2.40 per 1,000 gallons

INDUSTRIAL WATER CUSTOMERS

For the first 2,000 gallons of water consumption per month, or portion thereof	$20.05 (minimum)
For the next 4,000 gallons of water consumption per month, or portion thereof	4.31 per 1,000 gallons
For the next 4,000 gallons of water consumption per month, or portion thereof	2.60 per 1,000 gallons
For all water consumption in excess of 10,000 gallons	2.40 per 1,000 gallons

Section 3. That the provisions of this Ordinance are separable and if a section, phrase or provision shall be declared invalid, such declaration shall not affect the validity of the remainder of the Ordinance.

Section 4. That all ordinances and resolutions and parts thereof in conflict herewith are hereby repealed to the extent of such conflict.

PASSED: November 6, 2023

APPROVED:

ATTEST:

Mayor

City Recorder

(SEAL)

CERTIFICATE

The undersigned, City Recorder of the City of Rector, Arkansas hereby certifies that the foregoing pages are a true and perfect copy of Ordinance No. _____, adopted at a _____ session of the City Council of the City of Rector, Arkansas held at the regular meeting place in said City at ____ o'clock p.m., on the ____ day of _____, 2023, and that the Ordinance is of record in the Ordinance Record Book No. _____, Page _____, now in my possession.

GIVEN under my hand and seal on this ____ day of _____, 2023.

City Recorder

(SEAL)